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The Minister for Poverty Policy, Participation and Pensions  
P.O. Box 90801  
2509 LV THE HAGUE

Date

February 20, 2024

Our reference

z2024-000176

Your letter dated

December 20, 2023

Your reference

2023-0000563427

Subject

Advice on the draft amendment of the Temporary Regulation on Payment Arrears Signals

Dear Ms. Schouten,

In your letter dated December 20, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation regarding the draft for the Regulation of the Minister for Poverty Policy, Participation and Pensions of [...], no. 2023-0000583754, to amend the Temporary Regulation on Payment Arrears Signals in connection with the experiment with payment arrears at CAK for the personal contribution under the Social Support Act 2015 and the Long-Term Care Act, and the expansion of the experiment on payment arrears on mortgages (hereinafter: the draft).

Assessment of the personal data aspects of the draft gives the AP reason to make some comments.

Scope of the draft

The Municipal Debt Assistance Act (Wgs) contains the possibility to temporarily designate a signal from a creditor regarding payment arrears, which provide a better indication of more debts, by ministerial regulation.<sup>1</sup> A signal is provided to the municipality<sup>2</sup>, which then offers a first conversation to the relevant resident to establish the assistance request on its own initiative.<sup>3</sup>

<sup>1</sup> Article 10 of the Wgs. This article refers to Article 3, paragraph 1, under b, of the Wgs, which states that a signal from creditors that provides a good indication of more debts is determined by or pursuant to a general administrative measure.

<sup>2</sup> More precisely, the college of mayor and aldermen.

<sup>3</sup> Article 3, paragraph 1, under b, of the Wgs.

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The Temporary Regulation on Payment Arrears Signals (hereinafter: the Temporary Regulation) designates a number of signals. The draft expands this temporary regulation with signals from the CAK<sup>4</sup> regarding a payment arrear of:

- at least 100 euros and a minimum of five months on the oldest claim for the personal contribution for

the use of designated facilities under the Social Support Act 2015 (Wmo)<sup>5</sup>;

- at least 100 euros and a minimum of two months on the oldest claim for the personal contribution for protected living under the Wmo<sup>6</sup>;

- at least 100 euros and a minimum of two months on the oldest claim for the personal contribution under the Long-Term Care Act (Wlz)<sup>7,8</sup>

The purpose of this experiment is to investigate whether these payment arrears provide a good indication of (impending) problematic debts and thus are a valuable addition to the data that may be shared with municipalities.<sup>9</sup>

In addition, the draft expands an ongoing experiment with mortgage arrears with a number of municipalities and a mortgage lender.<sup>10</sup>

## Advice

### Providing signals

According to the explanation accompanying the draft, the experiment focuses solely on reaching residents with whom the CAK (or the engaged bailiff) is unable to make contact during the collection process.<sup>11</sup>

Inquiry with the ministry reveals that the CAK will also provide a signal to municipalities when it does make contact with a citizen, but the situation is such that the citizen is unable to seek help or there is an acute emergency situation.

The AP advises that the explanation be adjusted accordingly.

4 CAK, mentioned in Article 6.1.1, paragraph 1, of the Long-Term Care Act.

5 As referred to in Article 2.1.4, paragraph 3, of the Wmo.

6 As referred to in Article 2.1.4a, paragraph 7, of the Wmo.

7 As referred to in Article 3.2.5 of the Wlz.

8 Article I, D, of the draft (the proposed Article 2.4, paragraph 1, of the Temporary Regulation).

9 Explanation, p. 4.

10 Article I, C, of the draft.

11 Explanation, p. 4.

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### Authority of CAK

According to the explanation accompanying the draft, the CAK is authorized to provide signals to municipalities.<sup>12</sup> Article 1.2 of the Temporary Regulation, on the other hand, states that a signal is provided if certain conditions are met. A clear obligation to provide the signal seems to be the most appropriate in this context. If an authority – and thus discretion – is indeed intended, adjustment of this provision and supplementation of the explanation is advisable.

The AP advises that the explanation be amended to remove the reference to the CAK's authority.

### Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

### Disclosure

This advice will be published on the AP's website within two weeks.

Sincerely,

Authority for Personal Data,

Monique Verdier

Vice Chair

12 Explanation, pp. 7 and 8.